

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

-----X
RICHARD SMITH,

Plaintiff,

-against-

SUMMONS

Basis of Venue:
Place of Incident

THE CITY OF NEW YORK, NYPD DETECTIVE
MICHAEL SIMPSON (Shield # 001594), NYPD
OFFICER STEVENS (f/n/u)(Tax Reg. # 940770)
and NYPD OFFICERS JOHN and JANE DOE #'s 1-12
(names and numbers unknown at this time), and
Other Unidentified members of the New York City
Police Department,

Plaintiff Designates
Bronx County
as the place of trial

Defendants.
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To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
January 3, 2022

Respectfully submitted,

/s/ Sydney O'Hagan
Sydney O'Hagan, Esq.
40 Exchange Place
Suite 1000
New York, New York 10005
(774) 218-3461
sydney.ohagan@gmail.com

TO:

CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007

NYPD OFFICER MICHAEL SIMPSON (Shield # 001594), 47th Precinct, New York, NY

NYPD OFFICER STEVENS (f/n/u)(Tax Reg. # 940770), 1 Police Plaza, New York, NY

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

-----X
RICHARD SMITH,

Plaintiff,

**VERIFIED
COMPLAINT**

-against-

THE CITY OF NEW YORK, NYPD DETECTIVE
MICHAEL SIMPSON (Shield # 001594), NYPD
OFFICER STEVENS (f/n/u)(Tax Reg. # 940770)
and NYPD OFFICERS JOHN and JANE DOE #'s 1-12
(names and numbers unknown at this time), and
Other Unidentified members of the New York City
Police Department,

Defendants.
-----X

Plaintiff **Richard Smith**, by his attorney, SYDNEY O'HAGAN, ESQ., as and for the Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983 and the rights secured by the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution the laws of the State of New York. Plaintiff was unlawfully stopped, searched, and arrested by the defendants. Plaintiff was deprived of his federal constitutional rights, state constitutional rights, and common law rights when the individually named police defendants subjected him to, among other things, false arrest, unlawful search and seizure, negligence, gross negligence, intentional and negligent infliction of emotional distress, malicious prosecution, and implementation and continuation of an unlawful municipal policy, practice, and custom. Plaintiff seeks compensatory

and punitive damages, declaratory relief, an award of costs and attorney's fees and such other relief as the Court deems just and proper.

PARTIES

2. Plaintiff is a resident of the Bronx County, State of New York.
3. Defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.
4. NYPD OFFICER MICHAEL SIMPSON, assigned Shield # 001594, who at the time of this incident was employed with the 47th Precinct, and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
5. NYPD OFFICER MICHAEL SIMPSON (Shield # 001594) is being sued in his individual capacity and official capacity.
6. NYPD OFFICER STEVENS, assigned Tax Registration # 940770, who at the time of this incident was employed with the NYPD Critical Response Command, was at all times relevant herein an officer, employee and agent of the New York City Police Department.
7. NYPD OFFICER STEVENS (f/n/u)(Tax Reg. # 940770), is being sued in his individual capacity and official capacity.
8. Police Officer John Doe Number 1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
9. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
10. New York Police Officers John and Jane Doe #'s 2-12 are and were at all times relevant herein an officer, employee, and agent of the New York City Police Department.
11. Police Officers John and Jane Doe #'s 2-12 are being sued in his/her individual capacity and official capacity.

12. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
13. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
14. Plaintiff in furtherance of his State causes of action filed a timely Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.
15. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
16. The City of New York held a 50(h) hearing examination of Plaintiff on January 28, 2021.

STATEMENT OF FACTS

17. On April 14, 2020 at approximately 1:00 p.m. at 224th Street and White Plains Road, in Bronx County, New York, numerous police officers from the 47th Precinct, and other unknown police commands, including upon information and belief, defendant NYPD Officer Michael Simpson

(Shield # 001594) and P.O. John and Jane Does #1-12, and other as yet unknown police officers, at times acting in concert and at times acting independently, committed the following illegal acts against Plaintiff.

18. On April 14, 2020, Plaintiff was walking down the street when several plainclothes officers in an unmarked car approached him, placed him in handcuffs, and searched him without his permission or consent. Plaintiff asked why the officers had stopped him, but did not receive a response. Defendant officers, including NYPD Officer Simpson placed Plaintiff inside of a van and transported him to the 47th Precinct. The moment Plaintiff was approached by defendant officers, he was not free to leave.
19. Upon information and belief, at the time defendant NYPD Officers approached Plaintiff, they were not in possession of a warrant for his arrest. They also lacked probable cause or reasonable suspicion that Plaintiff had committed any crime.
20. Plaintiff was brought to the 47th Precinct and questioned by defendant officers, including NYPD Officer Simpson. Plaintiff spoke with defendant officers at length at the precinct and informed them that he, along with several other bystanders, had tried to break up a fight between two individuals on the street a few weeks earlier. Plaintiff was not involved in the fight, did not personally know the individuals fighting with one another, and did not know the other bystanders who also tried to break up the fight. Plaintiff intervened because he saw one of the two individuals armed with a machete. Plaintiff learned during his interrogation that the individual who had possessed the machete later died from injuries sustained from being hit in the head with a baseball bat. Plaintiff never possessed the baseball bat and had never attempted to possess the baseball bat. He simply tried to disarm the man who possessed the machete.

21. During questioning by Defendant NYPD Officers Plaintiff at all times denied being involved in the fight between the two individuals. Other than attempting to disarm the machete-wielding individual, Plaintiff had no interaction with the complaining witnesses. He denied then, and continues to deny all allegations against him, including that he committed any act of murder, manslaughter, or gang assault.
22. Indeed, security camera footage from a local business showed the entirety of the fight between the two individuals and the bystanders attempt to break up the fight. It clearly demonstrated that another individual, not the Plaintiff, wielded the bat that struck a fatal blow to the machete-wielding man. Remarkably, at the time Defendant NYPD Officers questioned Plaintiff, they were in possession of the video, and showed prepared stills of the video to Plaintiff during his questioning. Accordingly, at the time of Plaintiff's warrantless arrest and detention, and his removal to the 47th Precinct, and questioning therein, Defendant NYPD Officers were fully aware through incontrovertible evidence that Plaintiff had committed no offenses and was not involved in the fight. Plaintiff's version of events comported completely with the video. Despite this, defendant officers, including NYPD Officer Simpson, arrested and charged Plaintiff with murder and other related charges.
23. Moreover, prior to Plaintiff's arrest and shortly after the attack, defendant officer Stevens interviewed the victim, who informed Officer Stevens that one individual attacked him with a bat. This individual was clearly identified in the video surveillance. The victim never named or identified Plaintiff as his attacker that conversation or subsequent conversation with defendant officers.
24. Nevertheless, following questioning, Plaintiff was transferred to Bronx Central Booking.

25. While plaintiff was incarcerated at the 47th precinct and Bronx Central Booking, defendants falsely and maliciously told the Bronx County District Attorney's Office that Plaintiff had committed numerous crimes, including Murder, Manslaughter, and Gang Assault in the Second Degree.
26. Upon information and belief, defendant officers did not inform the Bronx County District Attorney prior to Plaintiff's arraignment that the victim of the murder never named Plaintiff as his attacker.
27. Upon information and belief, defendant officers did not inform the Bronx County District Attorney prior to Plaintiff's arraignment that the victim's attacker was plainly captured on video surveillance and was not the Plaintiff.
28. Upon information and belief, defendant officers failed to inform the Bronx County District Attorney's office the sum and substance of Plaintiff's interrogation, which completed exculpated him of any wrongdoing and comported with the objective evidence found in the video surveillance.
29. Upon information and belief, defendant officers failed to fully inform the Bronx County District Attorney of exculpatory evidence or evidence contradicting Plaintiff's guilt throughout the pendency of Plaintiff's criminal proceedings, including during defendant officers' Grand Jury testimony.
30. Bail was set at Plaintiff's arraignment, and he remained incarcerated for four and a half months. Plaintiff attended numerous court appearances. On or about August 27, 2020, Plaintiff testified before the Grand Jury. The Grand Jury concluded there was no reasonable cause to believe Plaintiff had committed any crime and issued a "No True Bill." On August 28, 2020, all charged against Plaintiff were dismissed and sealed.

31. Plaintiff's arrest and detention took place during a peak period of the ongoing Covid-19 Pandemic. Thus, the actions of Defendant NYPD Officers, including Defendant NYPD Officer Simpson, in illegally arresting Plaintiff and causing a criminal proceeding against him to commence directly jeopardized Plaintiff's health as he was detained for inside of squalid and unventilated New York City Department of Corrections Facilities, which were utterly lacking in proper protections and protocols to prevent the spread of Covid-19.
32. As a result of Plaintiff's arrest and prosecution, he lost his job and suffered severe anxiety and depression. Plaintiff paid a private attorney \$25,000 to represent him in his criminal case.

FIRST CAUSE OF ACTION

FALSE ARREST AND FALSE IMPRISONMENT

33. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 32 as if fully set forth herein.
34. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
35. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
36. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION**MALICIOUS PROSECUTION**

37. The plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 36 with the same force and effect as if more fully set forth at length herein.
38. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York.
39. Defendants commenced and continued a criminal proceeding against Plaintiff with malice and without probable cause, caused him a serious deprivation of liberty as a result, and Plaintiff obtained a favorable termination on the fabricated charges.
40. Defendants commenced and continued a criminal proceeding against Plaintiff.
41. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which he was prosecuted.
42. The prosecution and criminal proceedings terminated favorably to Plaintiff on August 28, 2020.
43. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate his state constitutional and tort rights.
44. The individually named Defendant Police Officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

THIRD CAUSE OF ACTION**NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION**

45. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 44 with the same force and effect as if more fully set forth at length herein.

46. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties.

FOURTH CAUSE OF ACTION

FAILURE TO INTERVENE

47. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 46 with the same force and effect as if more fully set forth at length herein.
48. Defendants had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other members of the NYPD, subjecting Plaintiff to, *inter alia*, unlawful search and seizure, detention, and malicious prosecution.
49. Defendants failed to intervene to prevent the unlawful conduct described herein despite having had a reasonable opportunity to do so, and full knowledge of the unlawful conduct.
50. As a result of the foregoing, Plaintiff was subjected to illegal search and undue force upon his person over the course of his false arrest.
51. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
52. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION**INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS**

53. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 52 with the same force and effect as if more fully set forth at length herein.
54. By the actions described herein, the individually named police officer defendants, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
55. As a result of the foregoing, Plaintiff was deprived of liberty and sustained great emotional injuries.
56. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat behavior.

FEDERAL CLAIMS**FIRST CLAIM FOR RELIEF****DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983**

57. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
58. All of the aforementioned acts of defendant OFFICERS MICHAEL SIMPSON and STEVENS and NYPD OFFICERS JOHN and JANE DOE #1-12, their agents, servants, and employees, were carried out under the color of state law.

59. All of the aforementioned acts deprived Plaintiff of his rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth, Fifth, Sixth, and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.
60. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.
61. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.
62. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF

FALSE ARREST UNDER 42 U.S.C. § 1983

63. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
64. As a result of the aforesaid conduct by defendants OFFICERS MICHAEL SIMPSON and STEVENS and NYPD OFFICERS JOHN and JANE DOE #1-12, Plaintiff was subjected to an illegal, improper, and false arrest by the defendants OFFICERS MICHAEL SIMPSON and STEVENS and NYPD OFFICERS JOHN and JANE DOE #1-12, taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

65. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

THIRD CLAIM FOR RELIEF

UNLAWFUL SEARCH UNDER 42 U.S.C. § 1983

66. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
67. Plaintiff person and Plaintiff's apartment were searched by defendants OFFICERS MICHAEL SIMPSON AND STEVENS and NYPD OFFICERS JOHN and JANE DOE #1-12 without an individualized reasonable suspicion that Plaintiff had committed any crime or was in possession of any illicit contraband, illegal weapons, or any other illegal substances.
68. As a result of the aforesaid conduct by defendants OFFICERS MICHAEL SIMPSON AND STEVENS and NYPD OFFICERS JOHN and JANE DOE #1-12, Plaintiff's person and dwelling were illegally and improperly searched without consent, a valid warrant, probable cause, and a specific articulable factual basis supporting a reasonable suspicion and/or probable cause to believe Plaintiff was in possession of contraband or any illegal substance as set forth in the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States.
69. As a result of the foregoing, Plaintiff was deprived of his Constitutional rights and has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

FOURTH CLAIM FOR RELIEF

DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983

70. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
71. Defendants OFFICERS MICHAEL SIMPSON AND STEVENS and NYPD OFFICERS JOHN and JANE DOE #1-12 created false evidence against the plaintiff, alleging that he committed numerous crimes, including murder, manslaughter, and gang assault.
72. Defendants OFFICERS MICHAEL SIMPSON AND STEVENS and NYPD OFFICERS JOHN and JANE DOE #1-12 forwarded false evidence and false information to prosecutors in the Bronx County District Attorney's Office – namely, the defendants falsely informed prosecutors *inter alia*, that Plaintiff had committed acts of murder, manslaughter, and gang assault, when, in fact, they had no physical evidence or other reliable evidence to establish the Plaintiff had committed the aforementioned offenses, and, in fact, did not have probable cause to arrest him for said offenses.
73. Defendants OFFICERS MICHAEL SIMPSON AND STEVENS and NYPD OFFICERS JOHN and JANE DOE #1-12 misled the prosecutors by creating false evidence against the Plaintiff and thereafter providing the aforementioned false statements throughout the criminal proceedings.
74. In creating false evidence against the plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants OFFICERS MICHAEL SIMPSON AND STEVENS and NYPD OFFICERS JOHN and JANE DOE #1-12 violated Plaintiff's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.
75. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FIFTH CLAIM FOR RELIEF**FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983**

76. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
77. Defendants OFFICERS MICHAEL SIMPSON AND STEVENS and NYPD OFFICERS JOHN and JANE DOE #1-12 had an affirmative duty to intercede when Plaintiff's constitutional rights were being violated in defendants' presence by committing the acts of false arrest, unlawful imprisonment, and the misrepresentation and falsification of evidence regarding the circumstances surrounding Plaintiff's arrest throughout all phases of the criminal proceedings.
78. Defendants OFFICERS MICHAEL SIMPSON AND STEVENS and NYPD OFFICERS JOHN and JANE DOE #1-12 further violated Plaintiff's constitutional rights when they failed to intercede and prevent the violation or further violation of Plaintiff's constitutional rights and the injuries or further injuries caused as a result of said failure.
79. As a result of the defendants' failure to intercede when Plaintiff's constitutional rights were being violated in defendants' presence, Plaintiff sustained, *inter alia*, emotional injuries, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

SIXTH CLAIM FOR RELIEF**MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**

80. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
81. Defendants OFFICERS MICHAEL SIMPSON AND STEVENS and NYPD OFFICERS JOHN and JANE DOE #1-12 misrepresented and falsified evidence before the Bronx County District

Attorney, including false allegations that Plaintiff committed acts of murder, manslaughter, and gang assault.

82. Defendants OFFICERS MICHAEL SIMPSON AND STEVENS and NYPD OFFICERS JOHN and JANE DOE #1-12 did not make a complete and full statement of facts to the District Attorney.
83. Defendants OFFICERS MICHAEL SIMPSON AND STEVENS and NYPD OFFICERS JOHN and JANE DOE #1-12 withheld exculpatory evidence from the District Attorney, including, but not limited to, Plaintiff's testimony regarding his role in trying to break up a fight.
84. Defendants OFFICERS MICHAEL SIMPSON AND STEVENS and NYPD OFFICERS JOHN and JANE DOE #1-12 were directly and actively involved in the initiation of criminal proceedings against plaintiff.
85. Defendants OFFICERS MICHAEL SIMPSON AND STEVENS and NYPD OFFICERS JOHN and JANE DOE #1-12 lacked probable cause to initiate criminal proceedings against plaintiff.
86. Defendants OFFICERS MICHAEL SIMPSON AND STEVENS and NYPD OFFICERS JOHN and JANE DOE #1-12 acted with malice in initiating criminal proceedings against plaintiff.
87. Defendants OFFICERS MICHAEL SIMPSON AND STEVENS and NYPD OFFICERS JOHN and JANE DOE #1-12 were directly and actively involved in the continuation of criminal proceedings against plaintiff.
88. Defendants OFFICERS MICHAEL SIMPSON AND STEVENS and NYPD OFFICERS JOHN and JANE DOE #1-12 lacked probable cause to continue criminal proceedings against plaintiff.
89. Defendants OFFICERS MICHAEL SIMPSON AND STEVENS and NYPD OFFICERS JOHN and JANE DOE #1-12 acted with malice in continuing criminal proceedings against plaintiff.

90. Defendants OFFICERS MICHAEL SIMPSON AND STEVENS and NYPD OFFICERS JOHN and JANE DOE #1-12 misrepresented and falsified evidence throughout all phases of the criminal proceedings.
91. Specifically, defendants OFFICERS MICHAEL SIMPSON AND STEVENS and NYPD OFFICERS JOHN and JANE DOE #1-12 made the aforementioned false and misleading allegations regarding the circumstances surrounding Plaintiff's arrest.
92. Notwithstanding the perjurious and fraudulent conduct of defendants OFFICERS MICHAEL SIMPSON AND STEVENS and NYPD OFFICERS JOHN and JANE DOE #1-12, the criminal proceedings were terminated in Plaintiff's favor on August 28, 2020.
93. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, he suffered economic damages, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

SEVENTH CLAIM FOR RELIEF

MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

94. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
95. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.
96. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:
- A. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,

- B. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
- C. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
- D. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and
- E. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.

- 97. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the Plaintiff.
- 98. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the Plaintiff as alleged herein.
- 99. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the Plaintiff as alleged herein.
- 100. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the Plaintiff's constitutional rights.

ATTORNEY'S VERIFICATION

I, **SYDNEY O'HAGAN**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **SYDNEY O'HAGAN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff's is that Plaintiff is out of the county.

DATED: New York, New York
January 3, 2022



Sydney O'Hagan, Esq.